

survivor of the others, of the persons to whom the power is given, unless the contrary is expressed in the instrument creating the power" (*e*). But this section does not authorise a trustee to disclaim a particular power so as to vest the exercise of it in his co-trustees while he continues a trustee for other purposes (*f*).

4. **Renunciation.**—It has been held in Ireland that the renunciation by one executor, by an instrument under seal, of the office of executor operates as a disclaimer under this section of powers annexed to the executorship (*g*).]

Secondly, Of assignment.

1. **Effect of assignment of the estate.**—The *power* is not appendant to the *estate*, so as to follow along with it in every transfer by the trustee, or devolution by course of * law (*a*). But where the estate is duly transferred [*608] to persons regularly appointed trustees under a power in the settlement creating the trust, the transferees take the estate and the office together, and can exercise the power. Where the settlement contains no such power, it seems that the appointment of new trustees by the Court would not, but for recent Acts, communicate arbitrary or special discretionary powers (*b*), unless they were expressly (*c*) or in fair construction limited to the trustees for the time being (*d*). If powers be given to trustees, their heirs, executors, administrators, and *assigns*, and the Court appoints new trustees and makes a vesting order, the new trustees are duly constituted assigns, and may therefore be justly considered within the purview of the settlement. But assigns from a trustee *mero motu*, and without competent authority, would not be so considered.

[(*e*) 45 & 46 Vict. c. 39, s. 6.]

[(*f*) See *Re Eyre*, 49 L. T. N. S. 259.]

[(*g*) *Re Fisher and Haslett*, 13 L. R. Ir. 546.]

(*a*) *Cole v. Wade*, 16 Ves. 47, per Sir W. Grant; *Crewe v. Dicken*, 4 Ves. 97; *Re Burt's Estate*, 1 Drew. 319; *Wilson v. Bennett*, 5 De G. & Sm. 475. The case of *Hardwicke v. Mynd*, 1 Anst. 109, is an anomaly.

(*b*) *Doyley v. Attorney-General*, 2 Eq. Ca. Ab. 194; *Fordyce v. Bridges*, 2 Ph. 497, see 510; *Newman v. Warner*, 1 Sim. N. S. 457; *Cooper v. Macdonald*, 35 Beav. 504; and see *Cole v. Wade*, 16 Ves. 44, 47; *Hibbard v. Lambe*, Amb. 309.

(*c*) *Bartley v. Bartley*, 3 Drew. 384; *Brassey v. Chalmers*, 4 De G. M. & G. 528.

(*d*) *Byam v. Byam*, 19 Beav. 66.